

25TRCV01856 25TRCV01856

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-09-23

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Case Number: 25TRCV01856 Hearing Date: September 23, 2026 Dept: B

Moving Parties: Plaintiff Bhavik V.

Thakkar

Responding Party: Defendant American Honda

Motor Co., Inc.

Motion

to Compel Deposition of Defendant's Person(s) Most Qualified

The Court considered the moving, opposition, and reply papers.

RULING

The

motion is GRANTED. See below.

BACKGROUND

On June

6, 2025, plaintiff Bhavik V. Thakkar filed a complaint against American Honda Motor Co., Inc. for violation of Song-Beverly Act as to a 2021 Honda Civic R.

On May

22, 2026, pursuant to stipulation and order, the June 16, 2026 trial date was continued to June 28, 2027.

LEGAL

AUTHORITY

CCP

§2025.450(a) provides: “If, after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, . . . , without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document . . . described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document . . . described in the deposition notice.”

CCP

§2025.450(b) provides, “A motion under subdivision (a) shall comply with both of the following:

(1) The motion shall set forth specific facts showing good cause justifying the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice.

(2) The motion shall be accompanied by a meet and confer declaration under Section 2016.040, or, when the deponent fails to attend the deposition and produce the documents, electronically stored information, or things described in the deposition notice, by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance.”

DISCUSSION

Plaintiff requests that the Court compel defendant to produce a PMQ for deposition pertaining to matters for examination 1 through 11.

Plaintiff's counsel states in his declaration that on May 15, 2026, plaintiff served a notice of deposition of defendant's PMQ for June 10, 2026, detailing eleven matters for examination. On June 8, defendant served objections and did not provide alternative dates. On June 17, plaintiff served a notice of deposition, for June 30. On June 24, defendant served objections and did not provide alternative dates. On

June 25, plaintiff served a notice of deposition for July 13. On June 29, defendant served objections and did not provide alternative dates.

Plaintiff's counsel states that he attempted to meet and confer. On June 24, plaintiff's counsel requested that defendant provide available dates.

Later that same day, defense counsel offered May 4, 2027, which is only one month before the continued trial date.

Plaintiff's counsel requested an available date in 2026. On June 29, plaintiff's counsel followed up and explained that a deposition date no later than October 2026 was necessary to allow sufficient time to complete the remaining discovery and to adequately prepare for trial. As of the motion filing date, defense counsel had not provided any earlier dates for deposition.

In opposition, defendant argues that it has never refused to produce a PMQ for deposition.

Defendant notes that as to the June 10 deposition, on June 8, defense counsel emailed plaintiff's counsel that the PMQ will not appear on June 10 but that he would be in touch soon with a proposed date. On June 9, defense counsel sent another email that the PMQ was in fact available for June 10, but plaintiff's counsel never responded. Defendant asserts that thereafter plaintiff would unilaterally notice deposition dates and that defendant properly objected and stated that counsel was "invited to contact defense counsel to coordinate rescheduling."

The Court rules as follows: The Court finds that defendant did not act reasonably in proposing an available date more than ten months in the future and a month prior to the trial date. The motion is thus GRANTED.

Sanctions

Under

CCP §2025.450(g)(1), "If a motion under subdivision (a) is granted, the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust."

Plaintiff

requests \$3060 in sanctions. The Court

notes that the notice of motion does not “identify every person, party, and attorney against whom the sanction is sought,” as required by CCP §2023.040. Defendant requests \$1350 in sanctions against plaintiff and his counsel. Defendant likewise does not adequately notice the request for sanctions as required by CCP §2023.040.

ORDER

The motion is GRANTED.

The requests for sanctions are DENIED.

Defendant is ordered to produce a PMQ for deposition within ____ days.

Plaintiff is ordered to give notice of ruling.